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Case Name: *Michelle Bailey v. Alireza Hekmati*

Case No.: 25CV471487

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Alireza Hekmati (“Defendant”) moves to compel Plaintiff Michelle Bailey (“Plaintiff”) to provide verified responses without objections to Form Interrogatories, Special Interrogatories, and Request for Production of Documents (“RFPs”), and for sanctions to be imposed against Plaintiff and in favor of Defendant and its counsel in the amount of \$600.00. Notice of Motion (the “Motion”) at 1:23-27 (filed: Oct. 14, 2025).

The Motion came on for hearing on June 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

This is a simple, straightforward Motion for the Court to resolve.

On August 13, 2025, Defendant served the following Code-Compliant discovery requests on Plaintiff:

- Form Interrogatories, Set One;
- Special Interrogatories, Set One; and
- Requests for Production of Documents (“RFPs”), Set One.

Declaration of attorney Christopher Tuttle (the “Tuttle Decl.”) In Support of Motion at ¶ 2 & Ex. A thereto (filed: Oct. 14, 2025).

Under California law, Plaintiff has a clear duty to provide verified Code-Compliant responses to these discovery requests.

To be Code Compliant, Plaintiff’s verified responses must:

- For these Interrogatories (Form and Special) comply with Code of Civil Procedure Sections 2030.210 & 2030.220 by providing answers to each interrogatory that are as complete and straightforward as the information reasonably available to Plaintiff permits; C.C.P. §§ 2030.210 & 2030.220; *and*

- For these RFPs comply with Code of Civil Procedure Sections 2031.210-2031.230 by stating:

(a) Plaintiff will comply with the RFPs—*and then* produce the documents and items requested;

(b) Plaintiff is unable to comply with the RFPs because the requested documents and items have never existed; or

(c) after diligent search and reasonable inquiry, Plaintiff is are unable to comply because the requested documents and items no longer exist or are no longer in his possession.

C.C.P. §§ 2031.210, 2031.220, 2031.230.

Here, the deadline for Plaintiff to provide verified Code-Compliant responses to these Interrogatories and RFPs was September 16, 2025. Tuttle Decl. at ¶ 6. Defendant’s counsel made good faith efforts to meet and confer with Plaintiff *and* offered to give Plaintiff an extension of the deadline to provide verified Code-Compliant responses to these Interrogatories and RFPs. Tuttle Decl. at ¶¶ 7-12 & Ex. B thereto. But Plaintiff never requested an extension of time to respond to these Interrogatories and RFPs. *Id.* at ¶6.

Now, nearly nine months after the deadline expired for Plaintiff to respond to these discovery requests, Plaintiff never provided verified Code-Compliant responses. Tuttle Decl. at ¶ 13. Plaintiff does not argue otherwise. Indeed, Plaintiff has not opposed this Motion at all, which the Court views as Plaintiff conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).)

Hence, because it is undisputed that—

(1) Plaintiff never provided verified Code-Compliant responses to these discovery requests, and

(2) the September 16, 2025 deadline for Plaintiff to respond had expired,

—it follows as a matter of logic and law that Defendant was justified in filing this Motion against Plaintiff on October 14, 2025, to compel Plaintiff to provide verified Code-Compliant responses to these discovery requests, which the Court will now compel Plaintiff to do within 30 days from today.³

³ Beyond compelling Plaintiff to provide verified Code-Compliant responses now, Defendant also asks the Court to compel Plaintiff to provide verified Code-Compliant responses *without objections* now. Def. Memo. of Points & Authorities at 3:11-21. While the Court has discretion to do so, compelling Plaintiff to waive objections strikes the

Which brings us to the issue of sanctions. The Court has broad authority under Code of Civil Procedure Section 2023.030(a) to impose a reasonable sanction against Plaintiff here: “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the *reasonable* expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” C.C.P. § 2023.030(a) (emphasis added). And Plaintiff’s failure to provide verified Code-Compliant responses to these Code-Compliant discovery requests is a misuse of the discovery process. C.C.P. § 2023.010(d)

So while the Court here can and will award Defendant a monetary sanction paid by Plaintiff for Defendant’s reasonable attorney’s fees and costs incurred for this Motion, the *amount* of this sanction is within the wide discretion of the Court. Simply put, the Court gets to determine what amount is *reasonable* under these circumstances.

Here, Defendant requests \$600.00 monetary sanction for its attorneys’ fees for four hours of work (which the Court construes as 4 hours at \$150.00 per hour), plus the \$60.00 filing fee for this Motion. Tuttle Decl. at ¶ 14. In light of prevailing rates in the relevant market, the Court rules that this billable rate sought of \$150.00 per hour is reasonable. *But* the number of 4.0 hours requested for this simple, straightforward Motion is *unreasonable* because this Motion was a layup.

All Defendant had to do to win this Motion was point out the undisputed facts that Defendant served these discovery requests on Plaintiff (he did), Plaintiff did not provide verified Code-Compliant responses (she did not), and the law requires Plaintiff to provide verified Code-Compliant responses (it does). That reasonably should have taken able counsel for Defendant one hour total. And there is no need for any reply brief or for counsel to spend any but *de minimis* time at a hearing on this Motion *that is uncontested*.

Regarding the \$60.00 filing fee sought as a reasonable cost incurred for this Motion, the Court agrees that this \$60.00 cost for this Motion is reasonable.

Hence, in the broad exercise of its discretion, the Court awards Defendant a monetary sanction of **\$210.00** (= attorneys’ fees of 1.0 hour at \$150.00 an hour, plus the \$60.00 filing fee for this Motion) to be paid by Plaintiff within 30 days from today for the reasonable attorneys’ fees and costs incurred by Defendant for this Motion.

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Court as a bit too harsh *as of now*. So *within* Plaintiff’s verified Code-Compliant responses that Plaintiff is ORDERED to provide to Defendant within 30 days of today, Plaintiff may include appropriate objections. But if for whatever reason Plaintiff fails to comply with this Order to provide verified Code-Compliant responses to these discovery requests within 30 days of today, the Court’s view on this point may change and then *at that point* the Court might indeed rule that Plaintiff has waived all objections to these discovery requests.

Conclusion and Order

Accordingly, the Court **GRANTS** Defendant Alireza Hekmati's Motion as follows:
The Court **ORDERS Plaintiff Michelle Bailey within 30 days of today to:**

- (1) Provide full and complete Code-Compliant Responses to the Form Interrogatories, Set One, served on Plaintiff on August 13, 2025;
- (2) Provide full and complete Code-Compliant Responses to the Special Interrogatories, Set One, served on Plaintiff on August 13, 2025;
- (3) Provide full and complete Code-Compliant responses to Requests for Production of Documents, Set One, served on Plaintiff on August 13, 2025;
- (4) Produce all responsive, non-privileged documents requested by the Requests for Production of Documents, Set One; *and*
- (5) Pay Defendant Alireza Hekmati \$210.00 as a monetary sanction for Defendant's reasonable attorneys' fees and costs for this Motion.

Note Well: Plaintiff Michelle Bailey is put on **NOTICE** that if she fails to comply with this Order within 30 days from today then Plaintiff Michelle Bailey will be subject to further escalating monetary and non-monetary sanctions including, but not limited to, issue, evidentiary, and terminating sanctions.

SO ORDERED.

Date: June 10, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 6

Case Name: *BHS Law LLP v. Moreh, Inc.*

Case No.: 25CV462175

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

In its Amended Motion for leave to file a First Amended Complaint (“FAC”), Plaintiff/Cross-Defendant, BHS LAW (“BHS”) seeks to clarify and streamline its allegations concerning the parties’ course of dealing, the expansion of the scope of legal services beyond the limited written engagement, and Defendant/Cross-Complainant, Moreh Inc.’s (“Moreh”) failure to pay the reasonable value of services rendered. (Notice of Amended Motion (the “Amended Motion”) at 2:10-12) (filed on May 14, 2026).⁴

The Amended Motion came on for hearing on June 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

On April 6, 2021, an Engagement Agreement was made between BHS and Moreh for legal services. Paragraph 17 of the Agreement authorized BHS to raise the billing rates once a year to reflect changes in the value of the services. (Complaint PLD-C-001(1) BC-1;

⁴ BHS originally filed its motion for leave to file a FAC on October 3, 2025, and submitted a proposed FAC therewith. But on May 14, 2026, BHS filed this Amended Motion for leave to file its FAC and submitted a new proposed FAC attached to the Declaration of Brian H. Song in support of Plaintiff’s Amended Motion (the “Amended Song Declaration”) for Order Granting to File First Amended Complaint filed on May 14, 2026. Under California law, an amended pleading supersedes the original pleading, rendering the original pleading without legal effect as a pleading. (See, *State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1130.) Likewise, the Amended Motion filed on May 14, 2026 and its supporting papers replaces the original motion filed on October 3, 2025 and its supporting papers.

Hence, so that the record is crystal clear, the FAC that the Court now considers for purposes of this Amended Motion is the proposed FAC attached to the Amended Song Declaration filed on **May 14, 2026**, *not* the earlier version filed on October 3, 2025.